Policy: 6220
Section: 6000 – Management Support

(DRAFT 03-09-21)

PROPOSED POLICY REVISIONS

Information Item

Rationale: The proposed policy language creates a process for approval of contracts during an emergency. If an unforeseen circumstance beyond the district's control occurs, the proposed language allows the contracting process to continue. The district would continue to obtain competitive bids where practicable and would seek ratification at the next regular board meeting. Additionally, the district's bid process for improvements and repairs is clarified.

Bid or Proposal Requirements

The Board of Directors of Vancouver Public Schools recognizes the importance of:

1. Maximizing the use of district resources;
2. The need for sound business practices in spending public money;
3. The requirement of complying with state and federal laws governing purchasing;
4. The importance of standardized purchasing regulations; and
5. The need for clear documentation.

I. Procurement Using State Funds

A. Whenever the estimated cost of furniture, supplies, or equipment (except books) will cost:

1. Less than Forty Thousand Dollars ($40,000.00), no competitive bidding process is required to make the purchase;

2. Between Forty Thousand Dollars ($40,000.00) and Seventy-Five Thousand Dollars ($75,000.00), the district will follow the informal competitive bidding process by requesting quotes from at least three (3) different sources to be obtained in writing or by telephone and recorded for the public to review; and

3. Over Seventy-Five Thousand Dollars ($75,000.00), the district will follow the formal competitive bidding process by:

   a. Preparing clear and definite plans and specifications for such work or purchases;

   b. Providing notice of the call for formal bids by publication in at least one (1) newspaper of general circulation in the district at least once each week for two (2) consecutive weeks;

   c. Providing the clear and definite plans and specifications to vendors interested in submitting a bid;

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d. Requiring that bids be in writing;

e. Opening and reading bids in public on the date and in the place named in the notice; and

f. Filing all bids for public inspection after opening.

B. The district may waive bid requirements for purchases:

1. Clearly and legitimately limited to a single source of supply;

2. Involving special facilities or market conditions;

3. In the event of an emergency;

4. Of insurance or bonds; and

5. Involving public works in the event of an emergency.

C. "Emergency" means unforeseen circumstances beyond the district's control that present a real, immediate threat to the proper performance of essential functions or will likely result in material loss or damage to property, bodily injury, or loss of life if immediate action is not taken.

D. Whenever bid requirements are waived, a document explaining the factual basis for the exception and the contract will be recorded and open for public inspection.

E. The district may, by resolution, reject any and all bids and make further calls for bids in the same manner as the original call. The district reserves the right to purchase, through an inter-local cooperative agreement, with another governmental agency provided such agency has complied with the bidding requirements that are applicable to school districts.

F. The district will include in each contract a proviso requiring the contractor to prohibit any of its employees who has ever been convicted of or pled guilty to any of the child related felonies from working where he/she would have contact with public school students. The contract will also provide that failure to comply with this requirement is grounds for immediate termination of the contract.

G. The superintendent or designee will establish bidding and contract awarding procedures for all purchases of furniture, equipment, supplies (except books) or public works projects consistent with state law.

II. Emergency Requiring Immediate Action

A. To determine whether an emergency requiring immediate action is necessary, the time required to contract using sealed bids shall be taken into account.

B. Prior to contracting without sealed bids, a proposed Emergency Determination ("Determination") shall be made by resolution of the board. The Determination shall contain such detail as is appropriate under the circumstances, but shall provide, at a minimum, a description of the emergency, and the superintendent's authority.

C. Even when an emergency is determined to exist, the district shall obtain competition whenever practicable as the best means to assure quality service and minimum cost.

D. Emergency contracting authority:

1. Up to $250,000.00 – deputy superintendent, chief fiscal officer; and

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2. Over $250,000.00 – superintendent.

E. In all instances, the board shall be notified, in writing, promptly after execution of such an emergency contract, and ratification shall be requested at the next regular school board meeting.

F. This emergency process is to supplement the powers of the district and not to limit the current powers of the district, with regard to other exceptions from competitive bidding requirements.

III. Use of State Funds for Improvements or Repairs

A. The district may make improvement or repairs to district property through a district department without following the competitive bidding process if the total cost of the public works project does not exceed Ten Thousand Dollars ($10,000). The district may select any vendor and proceed with the project.

B. The district implemented an internal process that requires public work projects between Ten Thousand Dollars ($10,000) and One Hundred Thousand Dollars ($100,000) to obtain three (3) competitive bids. "Public work" is defined as all work, construction, alteration, repair, or improvement other than ordinary maintenance, executed at the cost of the state or of any municipality, or which is by law a lien or charge on any property.

C. Improvements or repairs over One Hundred Thousand Dollars ($100,000) require a formal bidding process. Plans and specifications for the work must be completed and noticed by publication given in a newspaper of general circulation once each week for two consecutive weeks.

~~The district may make improvements or repairs to district property through a district department without following the competitive bidding process if the total cost of improvements or repairs does not exceed Seventy-Five Thousand Dollars ($75,000.00). If the district estimates that the total cost is One Hundred Thousand Dollars ($100,000.00) or more, the district will follow the formal competitive bidding process outlined above unless the contract is let using any other procedure authorized for school districts. There are no statutory bid requirements for public works projects involving improvements or repairs that are between the Seventy-Five Thousand Dollar ($75,000.00) range to the One Hundred Thousand Dollar ($100,000.00) range. The district will use an interlocal agreement or contract with a vendor of the district's choice.~~

IV. Procurement Using Federal Funds

A. Goods

The district qualifies as a low-risk auditee in accordance with 2 C.F.R. §200.520 therefore the following thresholds will be used when federal funds are used for procurement of goods (furniture, supplies, and equipment, and textbooks, unless superseded by state procurement laws:

1.~~a)~~ Purchases of Forty Thousand Dollars ($40,000.00) or less do not require quotes. However the district must consider the price to be reasonable, and, to the extent practical, distribute purchases equitably among suppliers.

2.~~b)~~ Purchases between Forty Thousand Dollars ($40,000.00) and Seventy-Five Thousand Dollars ($75,000.00) must be procured using price or rate quotations from three (3) or more qualified sources.

3.~~c)~~ Purchases of Seventy-Five Thousand Dollars ($75,000.00) or more must be publicly solicited using sealed bids or requests for proposals.

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B. Services

The district qualifies as a low-risk auditee in accordance with criteria in 2 C.F.R. §200.520, therefore the following thresholds may be used when federal funds are used for procurement of services, unless superseded by state procurement laws. Services means installation, maintenance, repair, training, labor, work, analysis, or similar services or activities provided by a contractor to accomplish a specific scope of work. :

1.~~a)~~ Purchases of Fifty Thousand Dollars ($50,000.00) or less do not require quotes. However, the district must consider the price to be reasonable, and, to the extent practical, distribute purchases equitably among suppliers.

2.~~b)~~ Purchases between Fifty Thousand Dollars ($50,000.00) and Two Hundred Fifty Thousand Dollars ($250,000.00) must be procured using price or rate quotations from a reasonable number of qualified sources.

3.~~c)~~ Purchase of Two Hundred Fifty Thousand Dollars ($250,000.00) or more must be publicly solicited using sealed bids or requests for proposals.

C. Noncompetitive procurement may be used only when one of the following five circumstances applies:

1. Acquiring property or services that do not exceed Forty Thousand Dollars ($40,000.00)

2. The item is only available from a single source;

3. The public exigency or emergency for the requirement will not permit a delay resulting from competitive solicitation;

4. The awarding agency (e.g., OSPI) authorizes a noncompetitive proposal in response to a written request from the district; or

5. After solicitation of a number of sources, competition is determined inadequate.

D. The district must maintain documentation supporting the applicable circumstance for noncompetitive procurement.

V. Suspension and Debarment

A. Before entering into federally funded vendor contracts for goods and services that equal or exceed Twenty Five Thousand Dollars ($25,000.00) and any subcontract award, the district will ensure the vendor is not suspended or debarred from participating in federal assistance programs.

B. The superintendent or designee will establish bidding and contract awarding procedures consistent with state and federal law.

VI. Conflict of Interest

A. No employee, officer or agent may participate in the selection, award, or administration of a contract supported by federal funds if he or she has a real or apparent conflict of interest. Such a conflict would arise when the employee, officer, or agent, any member of his or her immediate family, his or her partner, or an organization which employs or is about to employ any of the parties indicated herein has a financial or other interest in or a tangible personal benefit from a firm considered for a contract.

B. No employee, officer, or agent of the district may solicit or accept gratuities, favors, or anything of

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monetary value from contractors or parties to subcontracts. Violation of these standards may result in disciplinary action including, but not limited to, suspension, dismissal, or removal.

Legal References:	RCW 28A.335.190	34 CFR 85
	RCW 28A.400.330	2 CFR 200.67
	RCW 39.04.155	2 CFR 200.88
	RCW 39.04.280	2 CFR 200.318
	RCW 39.26.160	2 CFR 200.318.326
	RCW 39.30.060	2 CFR 320
	RCW 39.34	
	34 CFR 80.36	

Adopted: May 8, 2018

Revised: February 12, 2019

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